

Trade Seekerz Terms and Conditions

1 Introduction

- 1.1 These terms and conditions (**Terms**) are entered into between Trade Seekerz NZBN [insert] (**we, us or our**) and you, together the **Parties** and each a **Party**.
- 1.2 We provide a platform where businesses seeking individuals to carry out jobs (**Job Posters**) and individuals looking for jobs (**Job Seekers**) can connect (**Platform**).
- 1.3 In these Terms, **you** means (as applicable) the person or entity registered with us as either a Job Poster or a Job Seeker or the individual accessing or using the Platform.
- 1.4 If you are using the Platform on behalf of your employer or a business entity, you, in your individual capacity, represent and warrant that you are authorised to act on behalf of your employer or the business entity and to bind the entity and the entity's personnel to these Terms.

2 Acceptance and Platform Licence

- 2.1 You accept these Terms by accepting these Terms on the Platform.
- 2.2 You must be at least 18 years old to use the Platform.
- 2.3 We may amend these Terms at any time, by providing written notice to you. By clicking "I accept" or continuing to use the Platform after the notice or 30 days after notification (whichever date is earlier), you agree to the amended Terms. If you do not agree to the amendment and it adversely affects your rights, you may cancel your Account and Membership with effect from the date of the change in these Terms by providing written notice to us. If you cancel your Account and Membership, (a) you will no longer be able to use the Platform on and from the date of cancellation, and (b) if you have paid Membership Fees upfront you will be issued a pro-rata refund having regard to the date of termination and the period for which you have paid.
- 2.4 Subject to your compliance with these Terms, we grant you a personal, non-exclusive, royalty-free, revocable, worldwide, non-transferable licence to use our Platform in accordance with these Terms. All other uses are prohibited without our prior written consent.
- 2.5 When using the Platform, you must not do or attempt to do anything that is unlawful or inappropriate, including:
 - (a) anything that would constitute a breach of an individual's privacy (including uploading private or personal information without an individual's consent) or any other legal rights;
 - (b) using the Platform to defame, harass, threaten, menace or offend any person;
 - (c) using the Platform for unlawful purposes;
 - (d) interfering with any user of the Platform;
 - (e) tampering with or modifying the Platform (including by transmitting viruses and using trojan horses);
 - (f) using the Platform to send unsolicited electronic messages;
 - (g) using data mining, robots, screen scraping or similar data gathering and extraction tools on the Platform; or
 - (h) facilitating or assisting a third party to do any of the above acts.

3 Accounts

- 3.1 You must register on the Platform and create an account (**Account**) to access the Platform's features.
- 3.2 You may only have 1 Account as a Job Seeker and 1 Account as a Job Poster on the Platform.
- 3.3 You must provide basic information when registering for an Account including your business name, contact name and email address and you must choose a username and password. As a Job Seeker, you must also provide us with a list of licences and accreditations that you have.
- 3.4 Once you have registered an Account, your Account information will be used to create a profile which you may then curate.
- 3.5 All personal information you provide to us will be treated in accordance with our Privacy Policy.
- 3.6 You agree to provide and maintain up to date information in your Account and to not share your Account password with any other person. Your Account is personal and you must not transfer it to others.

- 3.7 You are responsible for keeping your Account details and your username and password confidential and you will be liable for all activity on your Account, including purchases made using your Account details. You agree to immediately notify us of any unauthorised use of your Account.
- 3.8 We may make access to and use of certain parts of the Platform subject to conditions or requirements, including identity verification, cancellation history, quality of services and threshold of reviews.
- 3.9 **Memberships – Job Seekers:** When you create an Account, you must also select a membership (**Membership**). You may choose between different tiers of Membership with different services and different membership periods as set out on our Platform.

4 Platform summary

- 4.1 The Platform is a marketplace where Job Posters and Job Seekers can find each other and connect to work on trade jobs. We provide the Platform to users (including hosting and maintaining the Platform) (together the **Trade Seekerz Services**). You understand and agree that we only make available the Trade Seekerz Services. We are not party to any agreement entered into between a Job Poster and a Job Seeker and we have no control over the conduct of Job Seekers, Job Posters or any other users of the Platform.
- 4.2 A Job Poster seeking services for a trade job creates an Account on the Platform and posts an accurate and complete description of the job (**Job Listing**) including the amount payable for the job (**Listing Fees**).
- 4.3 A Job Seeker wanting to apply for jobs creates an Account on the Platform and posts an accurate and complete description of the services they can provide, including their licences and accreditations. The Job Poster can then browse Job Listings.
- 4.4 Each Job Listing will have the applicable number of Credits listed. If the Job Seeker has sufficient Credits, they may request through the Platform to view the Job Poster's contact details.
- 4.5 The Job Seeker will contact the Job Poster outside of the Platform. The Job Poster must inform us within the Platform of their decision regarding the Job Seeker's application within 2 Business Days of reaching a Decision.
- 4.6 By applying for a Job Listing, the Job Seeker confirms that it is legally entitled to and capable of supplying the services described in the Job Listing.
- 4.7 Job Posters and Job Seekers may enter into written agreements in relation to the services. To the extent there is inconsistency between any additional terms and conditions and these Terms, these Terms will prevail.
- 4.8 Job Posters must include all additional terms and conditions in the relevant Job Listing or must clearly state that there are additional terms and conditions.

5 Communication

- 5.1 We may contact you via the Platform using in-Account notifications, or via off-Platform communication channels, such as text message or email.
- 5.2 Job Posters and Job Seekers must not communicate outside of the Platform until the Job Seeker has applied to the Job Listing. Job Posters and Job Seekers must not do anything to circumvent the payment of any fees to us.

6 Memberships - Job Seekers

- 6.1 You may purchase a Membership by paying the Membership fees outlined on the Platform (**Membership Fees**) in advance on a 3 month basis or some other recurring interval disclosed to you prior to your payment of the Fees (**Billing Cycle**).
- 6.2 Your Membership will automatically renew at the end of the Billing Cycle for the same period of time and you will be charged the Membership Fees in connection with each subsequent Billing Cycle unless and until you cancel your Membership.
- 6.3 **Changes to your Membership:** If you wish to suspend or change your Membership (for example, by upgrading to a different Membership tier), you must provide notice to us through your Account that you wish to suspend or vary your Membership at least 24 hours before the end of the current Billing Cycle. If you vary your Membership and the Fees increase, the increased Fees will apply at the start of your next Billing Cycle, and you will have access to the additional Membership features at the start of your next Billing Cycle.

- 6.4 The Membership Fees are only refundable and cancellable in accordance with any rights you may have under New Zealand consumer laws and these Terms.
- 6.5 We may need to change what is available as part of your Membership (for example, the inclusions, exclusions, updated features) from time to time. If we change what is available as part of your Membership, we will provide you with at least 30 days' notice of the change. After the notice period has lapsed, we will apply the changes to your Membership. If the changes adversely affect your enjoyment of the Membership, you may cancel your Membership with effect from the date we apply the changes to your Membership by providing written notice to us. If you cancel your membership, (a) you will no longer be able to use the Platform on and from the date of cancellation, and (b) if you have paid Membership Fees upfront you will be issued a pro-rata refund having regard to the date of termination and the period for which you have paid.
- 6.6 We may need to change the Membership Fees from time to time. If we change the Membership Fees, we will provide you with 30 days' notice of the change and the new Membership Fees will apply from your next Billing Cycle. If the updated Membership Fee is not acceptable to you, you may cancel your Membership and this in accordance with the 'Cancellation of Memberships' clause.

7 Credits – Job Seekers

- 7.1 Once you have made an Account and purchased a Membership, you can purchase credits on our Platform that entitle you to access Job Listings (**Credits**).
- 7.2 The types of Credits and applicable fees will be outlined on the Platform (**Credit Fees**).
- 7.3 The applicable Credits will be outlined on each Job Listing. When you apply to a Job Listing, we will temporarily remove the Credits from your Account.
- 7.4 If you successfully win a job, the applicable Credits for the Job Listing will be deducted from your Account. If you do not win the job, the applicable Credits for the Job Listing will be added back to your Account.
- 7.5 Credits are not transferrable for cash and not transferrable to another user.
- 7.6 To the maximum extent permitted by law, Credits are not refundable.

8 Payments

- 8.1 As a Job Poster, you agree to pay to the Job Seeker the Listing Fees when they have completed the services for you.
- 8.2 As a Job Seeker, you agree to pay the Membership Fees and Credit Fees.
- 8.3 We may pre-authorise or charge your payment method for a nominal amount to verify the payment method
- 8.4 The payment methods we offer for the Membership Fees and Credit Fees are set out on the Platform. We may offer payment through a third-party provider for example, Afterpay. You acknowledge and agree that we have no control over the actions of the third-party provider, and your use of the third-party payment method may be subject to additional terms and conditions.
- 8.5 You must not pay, or attempt to pay the Membership Fees or Credit Fees by fraudulent or unlawful means. If you make a payment by debit card or credit card, you warrant that you are authorised to use the debit card or credit card to make the payment. If payment is made by direct debit, by providing your bank account details and accepting these Terms, you authorise our nominated third party payment processor to debit your account in accordance with these Terms and you certify that you are either an account holder or an authorised signatory on the account for which you provide details.
- 8.6 You agree that we may set-off or deduct from any monies payable to you under these Terms, any amounts which are payable by you to us in connection with the Platform.
- 8.7 We do not store any credit card details, and all payment information is collected and stored through our third-party payment processor.

9 Refunds and Cancellation Policy

- 9.1 The cancellation, variation, or refund of any services ordered on this Platform is strictly a matter between the relevant Job Poster and Job Seeker. The terms and conditions agreed to between the Job Seeker and the Job Poster must be set out clearly in the relevant Job Listing. Should the Job Seeker and Job Poster agree to a refund of the Listing Fees, both the Job Seeker and Job Poster acknowledge and agree that the Listing Fees are only refundable in accordance with any rights under New Zealand consumer laws and these Terms.

- 9.2 For disputes between Job Posters and Job Seekers, we encourage Parties to attempt to resolve disputes (including claims for returns or refunds) with the other Party directly and in good faith, either on the Platform or through external communication methods. In the event that a dispute cannot be resolved through these means, the Parties may choose to resolve the dispute in any manner agreed between the Parties or otherwise in accordance with applicable laws.
- 9.3 This clause will survive the termination or expiry of these Terms.
- 10 Identify verification – Job Seeker**
- 10.1 If we choose to conduct identity verification or background checks on any Job Seeker, to the extent permitted by law, we disclaim all warranties of any kind, either express or implied, that such checks will identify prior misconduct by a Job Seeker or guarantee that a Job Seeker will not engage in misconduct in the future. Any verification of Job Seekers on the Platform is not an endorsement or recommendation that the Job Seeker is trustworthy or suitable. You should do your own due diligence before hiring any Job Seeker for a job.
- 10.2 As a Job Seeker, We may offer you the option of verifying your identity and/or validating your Account using a third party verification service (**Third Party ID Service**).
- 10.3 Where you have elected to verify your identity under this clause, you acknowledge and agree that (1) we may contact, connect to or otherwise liaise with Third Party ID Services to validate your identity and information (**Identity Check**); and (2) Third Party ID Services may provide us with your personal information or sensitive information, and you consent to us receiving and using this information to enable us to perform an Identity Check.
- 10.4 You acknowledge and agree that (1) the Identity Check may not be fully accurate, as it is dependent on the information provided by the relevant individual or business and/or information or checks performed by third parties; and (2) you should not rely on the Identity Checks and you should make your own inquiries as to the accuracy, legitimacy, validity, credibility or authenticity of any users of the Platform.
- 11 Intellectual Property**
- 11.1 All intellectual property (including copyright) developed, adapted, modified or created by us or our personnel (including in connection with the Terms, any content on the Platform, and the products) (**Our Intellectual Property**) will at all times vest, or remain vested, in us.
- 11.2 We authorise you to use Our Intellectual Property solely for the purposes for which it was intended to be used.
- 11.3 You must not, without our prior written consent:
- (a) copy, in whole or in part, any of Our Intellectual Property;
 - (b) reproduce, retransmit, distribute, disseminate, sell, publish, broadcast or circulate any of Our Intellectual Property to any third party; or
 - (c) breach any intellectual property rights connected with the Platform, including (without limitation) altering or modifying any of Our Intellectual Property; causing any of Our Intellectual Property to be framed or embedded in another website; or creating derivative works from any of Our Intellectual Property.
- 11.4 Nothing in the above clause restricts your ability to publish, post or repost Our Intellectual Property on your social media page or blog, provided that:
- (a) you do not assert that you are the owner of Our Intellectual Property;
 - (b) unless explicitly agreed by us in writing, you do not assert that you are endorsed or approved by us;
 - (c) you do not damage or take advantage of our reputation, including in a manner that is illegal, unfair, misleading or deceptive; and
 - (d) you comply with all other terms of these Terms.
- 11.5 This clause will survive the termination or expiry of these Terms.
- 12 Warranties**
- 12.1 You represent, warrant and agree that:
- (a) you will not use our Platform, including Our Intellectual Property, in any way that competes with our business;
 - (b) there are no legal restrictions preventing you from entering into these Terms;

- (c) all information and documentation that you provide to us in connection with these Terms is true, correct and complete;
- (d) where you are a Job Seeker, you are responsible for complying with all laws, rules and regulations which apply to providing the services; and
- (e) where you are a Job Seeker, you are appropriately qualified, and have any required skills, knowledge or training, to provide the services; and
- (f) where you are a Job Seeker, you are solely responsible for determining which jobs to accept, the type, timing, manner and means, methods or processes of providing your services, the price you charge for services. You are not our employee and are not entitled to any employment benefits. We do not supervise, direct or control any of the services you offer. We do not set your fees, work hours, your schedule or your location. We do not provide you with training, equipment or tools or any materials to provide your services. You are responsible for any taxes payable on any fee you receive for your services.

13 Consumer Law

- 13.1 Subject to any rights you may have under New Zealand consumer laws, we exclude all express and implied warranties, and all material, work and services (including the Platform) are provided to you without warranties of any kind, either express or implied, whether in statute, at law or on any other basis.
- 13.2 If you are a business using our Platform, you agree and represent that you are using our Platform for the purpose of trade, and we and you both agree that:
 - (a) the Consumer Guarantees Act 1993 and sections 9, 12A and 13 of the Fair Trading Act 1986 do not apply to the Trade Seekerz Services and these Terms; and
 - (b) it is fair and reasonable that we and you are both bound by these Terms, including this clause.
- 13.3 As a Job Poster, the services provided by a Job Seeker may also confer on you certain rights under New Zealand consumer laws.
- 13.4 This clause will survive the termination or expiry of these Terms.

14 Limitations on liability

- 14.1 To the maximum extent permitted by law, we will not be liable for, and you waive and release us from and against, any Liability caused or contributed to by, arising from or connected with:
 - (a) the use or results of any Third Party ID Service or Identity Check; and
 - (b) any aspect of the Job Poster and Job Seeker interaction including the services offered by the Job Seeker, the description of the services requested or offered, any advice provided, the performance of services or.
- 14.2 Despite anything to the contrary, to the maximum extent permitted by law:
 - (a) neither Party will be liable for Consequential Loss;
 - (b) each Party's liability for any Liability under these Terms will be reduced proportionately to the extent the relevant Liability was caused or contributed to by the acts or omissions of the other Party or any of that Party's personnel, including any failure by that party to mitigate its losses; and
 - (c) our aggregate liability for any Liability arising from or in connection with these Terms will be limited to, if you are a Job Poster, \$1,000, and if you are Job Seeker, the Membership Fees paid by you in the 12 months immediately preceding the act, event or omission giving rise to the Liability (and where there has been less than 12 months of Fees paid, an amount equal to 12 months of Membership Fees calculated on a pro rata basis having regard to the amount of Membership Fees paid and the period of time).
- 14.3 This clause will survive the termination or expiry of these Terms.

15 Termination

- 15.1 Your Account and these Terms may be terminated by you at any time, using the 'cancel Account' functionality (or similar) in the Account page section of your Account settings. Your cancellation will take effect immediately, however, if you are a Job Seeker and you have paid your Membership Fees upfront, you agree that you will be charged 30% of the Membership Fees remaining for your Billing Cycle. The remaining amount will be refunded back to your nominated bank account. You acknowledge and agree that this is a genuine pre-estimate of the the loss we will incur as a result of your early cancellation.

- 15.2 These Terms will terminate immediately upon written notice by a Party (**Non-Defaulting Party**) if:
- (a) the other Party (**Defaulting Party**) breaches a material term of these Terms and that breach has not been remedied within 10 Business Days of the Defaulting Party being notified of the breach by the Non-Defaulting Party; or
 - (b) the Defaulting Party is unable to pay its debts as they fall due.
- 15.3 Should we suspect that you are in breach of these Terms, we may suspend your Account while we investigate the suspected breach.
- 15.4 Upon expiry or termination of these Terms:
- (a) we will remove your access to the Platform and your account will be deleted;
 - (b) we will immediately cease providing the Trade Seekerz Services;
 - (c) where you are a Job Poster, we will cancel any existing Job Listings;
 - (d) where you are a Job Seeker, except as outlined in this Agreement, you will lose any Credits and other amounts paid, (other than where termination is due to our termination for convenience);
 - (e) where we terminate the Terms as a result of your unrectified default, you also agree to pay us our reasonable additional costs directly arising from such termination, including recovery fees.
- 15.5 Where termination is due to our breach of these Terms, we agree to refund you for any prepaid unused Membership Fees and Credit Fees on a pro-rata basis.
- 15.6 Termination of these Terms will not affect any rights or liabilities that a Party has accrued under it.
- 15.7 This clause will survive the termination or expiry of these Terms.

16 General

- 16.1 **Assignment:** Subject to the below clause, a Party must not assign or deal with the whole or any part of its rights or obligations under these Terms without the prior written consent of the other Party (such consent is not to be unreasonably withheld).
- 16.2 **Assignment of Debt:** You agree that we may assign or transfer any debt owed by you to us, arising under or in connection with these Terms, to a debt collector, debt collection agency, or other third party.
- 16.3 **Confidentiality:** Other than where the disclosure is permitted by law, each Party agrees not to disclose any confidential information it may access on or through the Platform to a third party, or otherwise misuse such confidential information. Confidential information may include confidential information supplied to you by us, by a Job Poster, or by a Job Seeker.
- 16.4 **Disputes:** In relation to a dispute, controversy or claim arising from, or in connection with, these Terms (including any question regarding its existence, validity or termination) (**Dispute**) between a Job Poster and us, or a Job Seeker and us, a Party may not commence court proceedings relating to a Dispute without first meeting with a senior representative of the other Party to seek (in good faith) to resolve the Dispute. If the Parties cannot agree how to resolve the Dispute at that initial meeting, either Party may refer the matter to a mediator. If the Parties cannot agree on who the mediator should be, either Party may ask the New Zealand Disputes Resolution Centre to appoint a mediator. The mediator will decide the time, place and rules for mediation. The Parties agree to attend the mediation in good faith, to seek to resolve the Dispute. The costs of the mediation will be shared equally between the Parties. Nothing in this clause will operate to prevent a Party from seeking urgent injunctive or equitable relief from a court of appropriate jurisdiction.
- 16.5 **Entire Terms:** These Terms contains the entire understanding between the Parties and the Parties agree that no representation or statement has been made to, or relied upon by, either of the Parties, except as expressly stipulated in these Terms, and these Terms supersedes all previous discussions, communications, negotiations, understandings, representations, warranties, commitments and agreements, in respect of its subject matter.
- 16.6 **Force Majeure:** Neither Party will be liable for any delay or failure to perform their respective obligations under these Terms if such delay or failure is caused or contributed to by a Force Majeure Event, provided the Party seeking to rely on the benefit of this clause, as soon as reasonably practical, notifies the other party in writing about the Force Majeure Event and the extent to which it is unable to perform its obligations, and uses reasonable endeavours to minimise the duration and adverse consequences of the Force Majeure Event.

- 16.7 **Further assurance:** Each Party must promptly do all things and execute all further instruments necessary to give full force and effect to these Terms and their obligations under it.
- 16.8 **Governing law:** These Terms are governed by the laws of New Zealand. Each Party irrevocably and unconditionally submits to the exclusive jurisdiction of the courts operating in New Zealand and any courts entitled to hear appeals from those courts and waives any right to object to proceedings being brought in those courts.
- 16.9 **Notices:** Any notice given under these Terms must be in writing addressed to us at the details set out below or to you at the details provided in your Account. Any notice may be sent by standard post or email, and will be deemed to have been served on the expiry of 48 hours in the case of post, or at the time of transmission in the case of transmission by email.
- 16.10 **Publicity:** With your prior written consent, You agree that we may advertise or publicise the broad nature of our supply of the Trade Seekerz Services to you, including on our website or in our promotional material.
- 16.11 **Relationship of Parties:** These Terms are not intended to create a partnership, joint venture, employment or agency relationship between the Parties.
- 16.12 **Severance:** If a provision of these Terms is held to be void, invalid, illegal or unenforceable, that provision is to be read down as narrowly as necessary to allow it to be valid or enforceable, failing which, that provision (or that part of that provision) will be severed from these Terms without affecting the validity or enforceability of the remainder of that provision or the other provisions in these Terms.
- 16.13 **Third party sites:** The Platform may contain links to websites operated by third parties. Unless we tell you otherwise, we do not control, endorse or approve, and are not responsible for, the content on those websites. We recommend that you make your own investigations with respect to the suitability of those websites. If you purchase goods or services from a third party website linked from the Platform, such third party provides the goods and services to you, not us. We may receive a benefit (which may include a referral fee or a commission) should you visit certain third-party websites via a link on the Platform (**Affiliate Link**) or for featuring certain products or services on the Platform. We will make it clear by notice to you which (if any) products or services we receive a benefit to feature on the Platform, or which (if any) third party links are Affiliate Links.
- 17 Definitions**
- 17.1 **Consequential Loss** means , whether under statute, contract, equity, tort (including negligence), indemnity or otherwise; any loss or damage that cannot be considered to arise according to the usual course of things from the relevant breach, act or omission, whether or not such loss or damage may reasonably be supposed to have been in the contemplation of the Parties at the time they entered into these Terms as the probable results of the relevant breach, act or omission, and/or, any real or anticipated loss of profit, loss of benefit, loss of revenue, loss of business, loss of goodwill, loss of opportunity, loss of savings, loss of reputation, loss of use and/or loss or corruption of data. The Parties agree that your obligation to pay us the Fee under these Terms will not constitute "Consequential Loss".
- 17.2 **Force Majeure Event** means any event or circumstance which is beyond a Party's reasonable control.
- 17.3 **Intellectual Property** means any and all existing and future rights throughout the world conferred by statute, common law, equity or any corresponding law in relation to any copyright, designs, patents or trade marks, domain names, know-how, inventions, processes, trade secrets or confidential information, circuit layouts, software, computer programs, databases or source codes, including any application, or right to apply, for registration of, and any improvements, enhancements or modifications of, the foregoing, whether or not registered or registrable.
- 17.4 **Liability** means any expense, cost, liability, loss, damage, claim, notice, entitlement, investigation, demand, proceeding or judgment (whether under statute, contract, equity, tort (including negligence), indemnity or otherwise), howsoever arising, whether direct or indirect and/or whether present, unascertained, future or contingent and whether involving a third party or a party to these Terms or otherwise.

For any questions or notices, please contact us at:

Trade Seekerz (NZBN [insert]) [insert email]

